

Reference Register in Aarhus Municipality

Date: 09-04-2024

Decision

Public Authorities

No Criticism

Supervision / Self-Management Case

Basis for Processing

The Data Protection Agency has, based on an article about Aarhus Municipality's use of a so-called reference register, considered whether there was reason to initiate a supervisory case.

Journal Number: 2024-432-0031.

Summary

The Data Protection Agency became aware, based on an article published on dr.dk, that Aarhus Municipality "is now establishing a so-called reference register, where employees with recorded offenses such as violence and threats will be listed."

In this regard, Aarhus Municipality was requested to answer a number of questions about the reference register, including what the purpose and legal basis were, how individuals end up in the register, and how long individuals remain listed.

Based on Aarhus Municipality's explanation, the Data Protection Agency assessed that there was no basis for initiating a supervisory case on the existing grounds.

Decision

1. The Data Protection Agency hereby returns to the case, where the agency – following a news article published on dr.dk[1] about Aarhus Municipality's so-called reference register – on March 7, 2024, requested Aarhus Municipality to answer a number of questions about the register.

The Data Protection Agency received Aarhus Municipality's explanation in the matter on March 26, 2024.

2. The Data Protection Agency will take no further action.

Based on Aarhus Municipality's explanation, the Data Protection Agency assesses that there is no basis for initiating a supervisory case on the existing grounds.

3. Aarhus Municipality's Explanation

It appears from Aarhus Municipality's explanation that the reference register is only established and used internally in Aarhus Municipality within the Health and Care Magistrate Department and thus not across Aarhus Municipality's administrative branches or across legal entities. Therefore, it is solely a matter of internal processing of information that is already processed in the Health and Care Magistrate Department and which should already be included in questions regarding re-employment, but where this is practically difficult.

Only individuals who have significantly breached their previous employment – particularly concerning disciplinary offenses related to citizen-related matters, e.g., inappropriate treatment of vulnerable citizens – will be registered, and this will occur after a specific assessment.

In connection with the dismissal of an employee, the dismissing manager, together with HR, will make a specific assessment of whether the circumstances underlying the dismissal are expected to have significant implications for the overall assessment of whether the employee should be offered re-employment upon reapplication within a given period. In this assessment, particularly weighty considerations for the citizens will be included, including the risk of recurrence.

Managers and heads of the Magistrate Department will have access to search the reference register.

The relevant managers and heads will need to log into the register using a username and a password.

Searches will only occur at the time in the process when references are otherwise being obtained.

In practice, the relevant manager in the Health and Care Magistrate Department will have the opportunity to search for the selected applicant's CPR number in the reference register. If the applicant is registered, the manager will be referred to contact HR. The reference register will thus only contain information that the individual is registered but will not contain personal data otherwise, including the basis for the registration, as this information will still only be in the previous personnel file(s).

The starting point is that the information in the reference register is deleted after 5 years.

In very special situations, where an employee has been dismissed due to very serious violations committed in service against citizens, a specific assessment will be made as to whether there is a basis for the individual being exceptionally registered for a longer period than 5 years. It is expected that this will only occur 1-2 times a year.

[1] <https://www.dr.dk/nyheder/seneste/medarbejdere-med-grove-forseelser-i-bagagen-skal-i-register-i-aarhus>